Virtus ETF Trust II – BNY Administration Amendment

Reading copy of a publicly filed HTML contract exhibit. Original HTML is enclosed. Page numbers below belong to this reading copy.

https://www.sec.gov/Archives/edgar/data/1648403/000199937126010675/ex99-h1c.htm

EX-99.(H)(1)(C)

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ex99-h1c.htm

AMENDMENT TO FUND ADMIN. AND ACCOUNTING AGREEMENT (2024-1201)

Virtus ETF Trust II 485BPOS

Exhibit 99.(h)(1)(c)

AMENDMENT

TO

FUND ADMINISTRATION AND ACCOUNTING AGREEMENT

This Amendment (“Amendment”)

dated December 1, 2024 is by and between VIRTUS ETF TRUST II (the “Trust”) and The Bank of New York Mellon (“BNY”).

BACKGROUND:

| | A. | The Trust and BNY are parties to a Fund Administration and Accounting Agreement dated December

17, 2015 (as amended the “Agreement”) relating to BNY’s provision of services to the Trust and its series (each

a “Series”).

| | B. | The parties desire to amend the Agreement as set forth herein.

| | C. | This Background section is incorporated by reference into and made a part of this Amendment.

TERMS:

The parties agree that:

| 1. | Section 11(a) of the Agreement is deleted in its entirety and replaced with the following:

1. (a)

This Agreement shall continue through December 1, 2027 (the “Initial Term”). Upon the expiration of the Initial

Term, this Agreement shall automatically renew for successive terms of two (2) years (each a “Renewal Term”),

unless the Trust has given written notice to BNY of its intent not to renew and such notice has been received by BNY not less

than ninety (90) days prior to the expiration of the Initial Term or the then-current Renewal Term or BNY has given written

notice to the Trust of its intent not to renew and such notice has been received by the Trust not less than ninety (90) days

prior to the expiration of the Initial Term or the then-current Renewal Term. In the event of termination, the Trust shall

pay BNY such compensation as may be due as of the date of such termination, and shall reimburse BNY for disbursements and

expenses made or incurred by BNY and payable or reimbursable hereunder.

| 2. | Miscellaneous.

(a)

As hereby amended and supplemented, the Agreement shall remain in full force and effect.

(b)

The Agreement, as amended hereby, constitutes the complete understanding and agreement of the parties with respect to the

subject matter thereof and supersedes all prior communications with respect thereto.

(c) The

parties expressly agree that this Amendment may be executed in one or more counterparts and expressly agree that

such execution may occur by manual signature on a physically delivered copy of this Amendment, by a manual signature on a

copy of this Amendment transmitted by facsimile transmission, by a manual signature on a copy of this Amendment transmitted

as an imaged document attached to an email, or by “Electronic Signature”, which is hereby defined to mean inserting

an image, representation or symbol of a signature into an electronic copy of this Amendment by electronic, digital or other

technological methods. Each counterpart executed in accordance with the foregoing shall be deemed an original, with all such

counterparts together constituting one and the same instrument. The exchange of executed counterparts of this Amendment or of

executed signature pages to counterparts of this Amendment, in either case by facsimile transmission or as an imaged document

attached to an email transmission, shall constitute effective execution and delivery of this Amendment and may be used for

all purposes in lieu of a manually executed and physically delivered copy of this Amendment.

(d)

This Amendment shall be governed by the laws of the State of New York, without regard to its principles of conflicts of

laws.

IN WITNESS WHEREOF,

each of the parties hereto has caused this Amendment to be executed by its duly authorized representative indicated below. An authorized

representative, if executing this Amendment by Electronic Signature, affirms authorization to execute this Amendment by Electronic

Signature and that the Electronic Signature represents an intent to enter into this Amendment and an agreement with its terms.

VIRTUS ETF TRUST II

On behalf of its Series identified on Exhibit A of

the Agreement

| By: | /s/ Brinton Frith

Name: Brinton Frith

Title: Treasurer

THE BANK OF NEW YORK MELLON

| By: | /s/ Robert M. Stein, Jr.

Name: Robert M. Stein, Jr.

Title: Vice President